OPEN LETTER · STEVE PROTHERO · OWNER

Playground softfall, colour change and shade sails: which fund and which authority

Sent 14 October 2026 · To The Executive Committee, Greenway Terraces (UP12457) · Response requested by 28 October 2026

Stephen W Prothero
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14 October 2026

Ms Lulu Issa, Strata Manager
Grady Strata & Facilities, for the Executive Committee
The Owners Corporation, Units Plan 12457 — Greenway Terraces

Dear Lulu

Authority for the playground softfall, fitness area colour change and shade sails — follow-up to your emails of 18 and 30 September

Thank you for your email of 18 September and the Executive Committee's letter attached to your email of 30 September.

What I am trying to achieve. I am trying to understand, in plain terms, how the expenditure on the playground softfall, the fitness area colour change and the shade sails was authorised under the Unit Titles (Management) Act 2011: which fund each was paid from, and which provision of the Act allows it. I am not questioning that the works were wanted.

What I am asking. Could the Committee explain this in words, in a short written statement, rather than by referring me to documents or folders? Documents are of course welcome in support, but where one is relied on, please say in a sentence what it provides. For each of the three items, please tell me:

1. the fund from which it was paid (Administrative or Sinking);
2. whether section 77(a), section 77(b) or section 88 is relied on; and
3. how the payment fits that provision.

For the softfall, I would be grateful if the explanation also covered three points. Your 18 September email relies on the Sinking Fund Plan adopted by Motion 3 on 28 August 2025, and section 88 requires a payment to be consistent with the plan.

1. The plan, in the version adopted by Motion 3, lists "Repair/replace softfall surface in outdoor gym" in 2025/26 and, separately, "Repair/replace playground softfall surface" in 2044. The works were carried out in the children's playground. Which plan entry is the payment said to be consistent with, and how?

2. The Purchasing Decision Assessment Form records a full cost of $47,500 ex GST, and the plan entry is $45,000 inc GST. Was the difference approved by any resolution of the Executive Committee or the Owners Corporation, or by an amendment to the plan under section 86?
3. The same Bruces Sports and Play quotation of 7 October 2025 also covered a colour change to the fitness equipment area ($13,500 + GST) and shade sails ($15,000 + GST). For each, which fund was used and what authority is relied on, including any line in the 2025/26 Administrative Fund budget?
A clear written explanation may answer my questions without more. If it does not, I will ask for the supporting records: the Sinking Fund ledger entries for the softfall payments (date, payee, amount and fund), and a colour copy of the Purchasing Decision Assessment Form with the funding and works-category selections legible. If any item does not exist or did not happen, please say so. I would be grateful for a reply by 28 October 2026.

A suggestion for the future. The current Executive Committee is one in what may be a long chain of committees over the life of the complex, and each is only a short-term custodian of the Owners Corporation's governance. Each inherits the decisions, records and commitments of those before it, and hands them on to those after it. Owners and committees reading the history years from now should be able to follow an improvement from concept to payment without piecing it together from several sets of papers, and each committee should be able to rely on, and be judged by, a record that explains itself. I ask the Committee to consider adopting a practice along these lines:
1. the meeting papers set out a costed proposal: scope, estimated cost, the fund, and the plan or budget line it relies on;
2. the owners then vote on a specific ordinary resolution: for the general fund, authorising payment of up to a stated amount for a stated scope under section 77(b); for the sinking fund, amending the plan under section 86 where the item is not already in it; rather than a resolution in principle; and
3. a one-page record for each project, kept with the corporate records, links the proposal, the resolution, the budget or plan line, any variation, and the payments.
I also encourage the Committee to consider how more owners can take part in these decisions, including by video link, which Schedule 3, section 3.1 already allows. I would be glad to know whether the Committee is willing to consider this.

Please ensure that a copy of this letter is given to each executive member.

Yours sincerely
Stephen W Prothero
Owner, Unit 151